

SENATE BILL 1350

By Akbari

AN ACT to amend Tennessee Code Annotated, Title 33;
Title 38 and Title 39, Chapter 17, relative to
firearms.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 39, Chapter 17, Part 13, is amended by
adding the following new sections:

39-17-1367.

(a) As used in this section:

(1) "Extreme risk protection order" means a temporary ex parte order or a
final order granted pursuant to this section;

(2) "Petitioner" means any of the following who petition a court for an
extreme risk protection order pursuant to this section:

(A) A law enforcement officer or a law enforcement agency; or

(B) A person who is related to the respondent by blood, marriage,
or adoption; and

(3) "Respondent" means the individual who is identified as the
respondent in a petition filed pursuant to this section.

(b)

(1) There is created an action known as a petition for an extreme risk
protection order.

(2) A petition for an extreme risk protection order may be filed by a
petitioner.

(3) A petition for an extreme risk protection order must be filed in the county where the petitioner resides or the petitioner's law enforcement office is located, as applicable, or the county where the respondent resides.

(4) A petition for an extreme risk protection order does not require either party to be represented by an attorney.

(5) Notwithstanding another law, attorney fees must not be awarded in any proceeding under this section.

(6) A petition must:

(A) Allege that the respondent poses a significant danger of causing personal injury to the respondent's self or others by having a firearm or any ammunition in the respondent's custody or control or by purchasing, possessing, or receiving a firearm or any ammunition, and must be accompanied by an affidavit made under oath stating the specific statements, actions, or facts that give rise to a reasonable fear of significant dangerous acts by the respondent;

(B) Identify the quantities, types, and locations of all firearms and ammunition the petitioner believes to be in the respondent's current ownership, possession, custody, or control;

(C) Identify whether there is a known existing protection order governing the respondent under title 36, chapter 3, part 6 or under any other applicable statute; and

(D) Include a physical description of the respondent and the respondent's last known location.

(7) The petitioner must make a good faith effort to provide notice to a family or household member of the respondent and to any known third party who

may be at risk of violence. The notice must state that the petitioner intends to petition the court for an extreme risk protection order or has already done so and, if the petitioner is a law enforcement officer or a law enforcement agency, must include referrals to appropriate resources, including mental health, domestic violence, and counseling resources. The petitioner must attest in the petition to having provided such notice or must attest to the steps that will be taken to provide such notice.

(8) If the petitioner is a law enforcement officer or a law enforcement agency, then the petitioner must list the address of record on the petition as being where the appropriate law enforcement agency is located.

(9) A court or a public agency shall not charge fees for filing or for service of process to a petitioner seeking relief under this section and must provide the necessary number of certified copies, forms, and instructional brochures free of charge.

(10) A person is not required to post a bond to obtain relief in a proceeding under this section.

(11) The circuit courts of this state have jurisdiction over proceedings under this section.

(c)

(1) Upon receipt of a petition, the court must order a hearing to be held no later than fourteen (14) days after the date the petition is filed and must issue a notice of hearing to the respondent.

(2) The clerk of the court shall cause a copy of the notice of hearing and petition to be forwarded on or before the next business day to the appropriate law

enforcement agency for service upon the respondent as provided in subsection (l).

(3) The court may, as provided in subsection (k), issue a temporary ex parte extreme risk protection order pending the hearing ordered under this subsection (c). A temporary ex parte order must be served concurrently with the notice of hearing and petition as provided in subsection (l).

(d) Upon notice and a hearing on the matter, if the court finds by clear and convincing evidence that the respondent poses a significant danger of causing personal injury to the respondent or others by having in the respondent's custody or control, or by purchasing, possessing, or receiving, a firearm or ammunition, then the court shall issue an extreme risk protection order for an appropriate period of up to twelve (12) months.

(e) In determining whether grounds for an extreme risk protection order exist, the court may consider any relevant evidence, including, but not limited to, the following:

(1) A recent act or threat of violence by the respondent against the respondent's self or others, whether or not the violence or threat of violence involves a firearm;

(2) An act or threat of violence by the respondent within the past twelve (12) months, including, but not limited to, acts or threats of violence by the respondent against the respondent's self or others;

(3) Evidence of the respondent being seriously mentally ill or having recurring mental health issues;

(4) A violation by the respondent of an order of protection issued pursuant to title 36, chapter 3, part 6;

(5) A previous or existing extreme risk protection order issued against the respondent;

(6) A violation of a previous or existing extreme risk protection order issued against the respondent;

(7) Whether the respondent, in this state or another state, has been convicted of, had adjudication withheld on, or pled nolo contendere to a crime involving domestic abuse as defined in § 36-3-601;

(8) Whether the respondent has used or threatened to use, against the respondent's self or others, a weapon;

(9) The unlawful or reckless use, display, or brandishing of a firearm by the respondent;

(10) The recurring use of, or threat to use, physical force by the respondent against another person or evidence of the respondent stalking another person;

(11) Whether the respondent, in this state or another state, has been arrested for, convicted of, had adjudication withheld on, or pled nolo contendere to a crime involving violence or a threat of violence;

(12) Corroborated evidence of the abuse of controlled substances or alcohol by the respondent;

(13) Evidence of recent acquisition of firearms or ammunition by the respondent;

(14) Any relevant information from family and household members concerning the respondent; and

(15) Witness testimony, taken while the witness is under oath, relating to the matter before the court.

(f) A person, including an officer of the court, who offers evidence or recommendations relating to the petition shall:

(1) Present the evidence or recommendations in writing to the court with copies to each party and the party's attorney, if retained; or

(2) Present the evidence under oath at a hearing at which all parties are present.

(g) During the hearing, the court shall consider whether a mental health evaluation or substance abuse assessment is appropriate and may order such evaluations if appropriate.

(h) An extreme risk protection order must include the following:

(1) A statement of the grounds supporting the issuance of the order;

(2) The date the order was issued;

(3) The date the order ends;

(4) Whether a mental health evaluation or substance abuse assessment of the respondent is required;

(5) The address of the court in which any responsive pleading should be filed;

(6) A description of the requirements for the surrender of all firearms and ammunition that the respondent owns under § 39-17-1368; and

(7) The following statement:

To the subject of this protection order: This order will last until the date noted above. If you have not done so already, you must surrender immediately to the (insert name of local law enforcement agency) all firearms and ammunition that you own or have in your custody, control, or possession and any license to carry a handgun issued to you under Tennessee Code Annotated, § 39-17-1351 or § 39-17-1366. You may not have in your custody or control, or purchase, possess, receive, or

attempt to purchase or receive, a firearm or ammunition while this order is in effect. You have the right to request a hearing to vacate this order, starting after the date of the issuance of this order, and to request another hearing after every extension of this order, if any. You may seek the advice of an attorney as to any matter connected with this order.

(i) If the court issues an extreme risk protection order, then the court must inform the respondent that the respondent is entitled to request a hearing to vacate the order in the manner provided by subsection (m). The court shall provide the respondent with a form to request a hearing to vacate.

(j) If the court denies the petitioner's request for an extreme risk protection order, then the court must issue a written order stating the particular reasons for the denial.

(k)

(1) A petitioner may request that a temporary ex parte extreme risk protection order be issued before a hearing for an extreme risk protection order and without notice to the respondent, by including in the petition detailed allegations based on personal knowledge that the respondent poses a significant danger of causing personal injury to the respondent's self or others in the near future by having in the respondent's custody or control, or by purchasing, possessing, or receiving, a firearm or ammunition.

(2) In considering whether to issue a temporary ex parte extreme risk protection order under this subsection (k), the court shall consider all relevant evidence, including the evidence described in subsection (e).

(3) If a court finds there is reasonable cause to believe that the respondent poses a significant danger of causing personal injury to the respondent's self or others in the near future by having in the respondent's

custody or control, or by purchasing, possessing, or receiving, a firearm or ammunition, then the court shall issue a temporary ex parte extreme risk protection order.

(4) The court shall hold a temporary ex parte extreme risk protection order hearing in person or by telephone on the day the petition is filed or the next business day.

(5) A temporary ex parte extreme risk protection order must include the following:

(A) A statement of the grounds asserted for the order;

(B) The date the order was issued;

(C) The address of the court in which a responsive pleading may be filed;

(D) The date and time of the scheduled hearing;

(E) A description of the requirements for the surrender of all firearms and ammunition that the respondent owns, pursuant to § 39-17-1368; and

(F) The following statement:

To the subject of this protection order: This order is valid until the date noted above. You are required to surrender all firearms and ammunition that you own or have in your custody, control, or possession. You may not have in your custody or control, or purchase, possess, receive, or attempt to purchase or receive, a firearm or ammunition while this order is in effect. You must surrender immediately to the (insert name of local law enforcement agency) all firearms and ammunition in your custody,

control, or possession and any license to carry a handgun issued to you under Tennessee Code Annotated, § 39-17-1351 or § 39-17-1366. A hearing will be held on the date and at the time noted above to determine if an extreme risk protection order should be issued. Failure to appear at that hearing may result in a court issuing an order against you which is valid for one (1) year. You may seek the advice of an attorney as to any matter connected with this order.

(6) A temporary ex parte extreme risk protection order expires upon the hearing on the extreme risk protection order.

(7) A temporary ex parte extreme risk protection order must be served by a law enforcement officer in the same manner as provided for in subsection (l) for service of the notice of hearing and petition and must be served concurrently with the notice of hearing and petition.

(8) If the court denies the petitioner's request for a temporary ex parte extreme risk protection order, then the court shall issue a written order stating the particular reasons for the denial.

(l)

(1) The clerk of the court shall furnish a copy of the notice of hearing, petition, and temporary ex parte extreme risk protection order or extreme risk protection order, as applicable, to the sheriff of the county where the respondent resides or can be found, who shall serve it upon the respondent as soon as possible on any day of the week and at any time of the day or night. When requested by the sheriff, the clerk of the court may transmit a facsimile copy of a temporary ex parte extreme risk protection order or an extreme risk protection

order that has been certified by the clerk of the court, and this facsimile copy may be served in the same manner as a certified copy. Upon receiving a facsimile copy, the sheriff shall verify receipt with the sender before attempting to serve it upon the respondent. The clerk of the court is responsible for furnishing to the sheriff information on the respondent's physical description and location. Service under this subsection (l) takes precedence over the service of other documents, unless the other documents are of a similar emergency nature.

(2) All orders issued, changed, continued, extended, or vacated after the original service of documents pursuant to subdivision (l)(1) must be certified by the clerk of the court and delivered to the parties at the time of the entry of the order. The parties may acknowledge receipt of such order in writing on the face of the original order. If a party fails or refuses to acknowledge the receipt of a certified copy of an order, then the clerk shall note on the original order that service was effected. If delivery at the hearing is not possible, then the clerk shall mail certified copies of the order to the parties at the last known address of each party. Service by mail is complete upon mailing. When an order is served pursuant to this subdivision (l)(2), the clerk shall prepare a written certification to be placed in the court file specifying the time, date, and method of service and shall notify the sheriff.

(m)

(1) The respondent may submit one (1) written request for a hearing to vacate an extreme risk protection order issued under this section, starting after the date of the issuance of the order, and may request another hearing after every extension of the order, if any.

(2) Upon receipt of the request for a hearing to vacate an extreme risk protection order, the court shall set a date for a hearing. Notice of the request and hearing must be served on the petitioner in accordance with subsection (l). The hearing must occur no sooner than fourteen (14) days and no later than thirty (30) days after the date of service of the request upon the petitioner.

(3) The respondent has the burden of proving by clear and convincing evidence that the respondent does not pose a significant danger of causing personal injury to the respondent or others by having in the respondent's custody or control, purchasing, possessing, or receiving a firearm or ammunition. The court may consider all relevant evidence, including the evidence described in subsection (e).

(4) If the court finds after the hearing that the respondent has met the burden of proof, then the court must vacate the order.

(5) The clerk of the court shall notify the law enforcement agency holding any firearm or ammunition or handgun carry permit that has been surrendered pursuant to § 39-17-1368 of the court order to vacate the extreme risk protection order.

(n) The court shall notify the petitioner of the impending end of an extreme risk protection order. Notice must be received by the petitioner at least thirty (30) days before the date the order ends.

(o)

(1) The petitioner may, by motion, request an extension of an extreme risk protection order at any time within thirty (30) days before the end of the order.

(2) Upon receipt of the motion to extend, the court shall order that a hearing be held no later than fourteen (14) days after receipt of the motion and shall schedule such hearing; provided, that if the motion to extend is filed within fourteen (14) days of the date the extreme risk protection order is due to expire, then the court shall also order a temporary extension of the extreme risk protection order to coincide with the date of the hearing. The respondent must be personally served in the same manner provided by subsection (l).

(3) In determining whether to extend an extreme risk protection order issued under this section, the court may consider all relevant evidence, including the evidence described in subsection (e).

(4) If the court finds by clear and convincing evidence that the requirements for issuance of an extreme risk protection order as provided in this section continue to be met, then the court must extend the order. However, if, after notice to the respondent, the motion for extension is uncontested and no modification of the order is sought, then the order may be extended on the basis of a motion or affidavit stating that there has been no material change in relevant circumstances since entry of the order and stating the reason for the requested extension.

(5) The court may extend an extreme risk protection order for a period that it deems appropriate, up to twelve (12) months.

39-17-1368.

(a) Upon issuance of an extreme risk protection order pursuant to § 39-17-1367, including a temporary ex parte extreme risk protection order, the court shall order the respondent to surrender to the local law enforcement agency all firearms and ammunition owned by the respondent or in the respondent's custody, control, or

possession, except as provided in § 39-17-1370, and any handgun carry permit issued under § 39-17-1351 or § 39-17-1366, held by the respondent.

(b) The law enforcement officer serving an extreme risk protection order issued pursuant to § 39-17-1367, including a temporary ex parte extreme risk protection order, shall request that the respondent immediately surrender all firearms and ammunition owned by the respondent or in the respondent's custody, control, or possession and any handgun carry permit issued under § 39-17-1351 or § 39-17-1366, held by the respondent. The law enforcement officer shall take possession of all firearms and ammunition owned by the respondent or in the respondent's custody, control, or possession and any handgun carry permit issued under § 39-17-1351 or § 39-17-1366, held by the respondent, which are surrendered. Alternatively, if personal service by a law enforcement officer is not possible or is not required because the respondent was present at the extreme risk protection order hearing, then the respondent must surrender all firearms and ammunition owned by the respondent or in the respondent's custody, control, or possession and each handgun carry permit issued under § 39-17-1351 or § 39-17-1366, held by the respondent, in a safe manner to the control of the local law enforcement agency immediately after being served with the order by service or immediately after the hearing at which the respondent was present. A law enforcement officer may seek a search warrant from a court of competent jurisdiction to conduct a search for firearms or ammunition owned or held by the respondent if the officer has probable cause to believe that there are firearms or ammunition in the respondent's custody, control, or possession that have not been surrendered.

(c) At the time of surrender, a law enforcement officer taking possession of a firearm or ammunition owned by the respondent or in the respondent's custody, control, or possession, or a handgun carry permit issued under § 39-17-1351 or § 39-17-1366,

held by the respondent shall issue a receipt identifying all firearms and the quantity and type of ammunition that have been surrendered, and any permit surrendered, and shall provide a copy of the receipt to the respondent. Within seventy-two (72) hours after service of the order, the law enforcement officer serving the order shall file the original receipt with the court and shall ensure that the officer's law enforcement agency retains a copy of the receipt.

(d) Upon the sworn statement or testimony of any person alleging that the respondent has failed to comply with the surrender of firearms or ammunition as required by an order issued pursuant to § 39-17-1367, the court shall determine whether probable cause exists to believe that the respondent has failed to surrender all firearms or ammunition owned by the respondent or in the respondent's custody, control, or possession. If the court finds that probable cause exists, then the court must issue a warrant describing the firearms or ammunition owned or possessed by the respondent and authorizing a search of the locations where the firearms or ammunition owned or possessed by the respondent are reasonably believed to be found and the seizure of firearms or ammunition owned or possessed by the respondent discovered pursuant to the search.

(e) If a person other than the respondent claims title to firearms or ammunition surrendered pursuant to this section and the person is determined by the law enforcement agency to be the lawful owner of the firearm or ammunition, then the firearm or ammunition must be returned to the person, if:

(1) The lawful owner agrees to store the firearm or ammunition in a manner such that the respondent does not have access to or control of the firearm or ammunition; and

(2) The firearm or ammunition is not otherwise unlawfully possessed by the owner.

(f) Upon the issuance of an extreme risk protection order, the court shall order a new hearing date and require the respondent to appear no later than three (3) business days after the issuance of the order. At the hearing, the court shall require proof that the respondent has surrendered all firearms or ammunition owned by the respondent or in the respondent's custody, control, or possession. The court may cancel the hearing upon a satisfactory showing that the respondent is in compliance with the order.

(g) All law enforcement agencies must develop policies and procedures regarding the acceptance, storage, and return of firearms, ammunition, or licenses required to be surrendered under this section.

39-17-1369.

(a) If an extreme risk protection order issued pursuant to § 39-17-1367 is vacated or ends without extension, then a law enforcement agency holding a firearm or ammunition owned by the respondent or a handgun carry permit issued under § 39-17-1351 or § 39-17-1366, held by the respondent, that has been surrendered or seized pursuant to an extreme risk protection order must return the surrendered firearm, ammunition, or permit, as requested by a respondent only after confirming through a background check that the respondent is currently eligible to own or possess firearms and ammunition under federal and state law and after confirming with the court that the extreme risk protection order has been vacated or has ended without extension.

(b) If an extreme risk protection order is vacated or ends without extension, then the department of safety, if the department has suspended a handgun carry permit issued under § 39-17-1351 or § 39-17-1366 pursuant to the entry of an extreme risk protection order under § 39-17-1367, must reinstate the permit only after confirming that

the respondent is currently eligible to have a handgun carry permit issued under § 39-17-1351 or § 39-17-1366.

(c) A law enforcement agency must provide notice to each family or household member of the respondent before returning a surrendered firearm and ammunition owned by the respondent.

(d) A firearm and ammunition surrendered by a respondent pursuant to § 39-17-1368 that remains unclaimed by the lawful owner for one (1) year after an order to vacate the extreme risk protection order must be disposed of pursuant to § 39-17-1317.
39-17-1370.

A respondent in an action pursuant to § 39-17-1367 may elect to transfer all firearms and ammunition owned by the respondent that have been surrendered to or seized by a local law enforcement agency pursuant to the extreme risk protection order to another person who is willing to receive the respondent's firearms and ammunition. The law enforcement agency shall allow such a transfer only if it is determined that the chosen recipient:

(1) Currently is eligible to own or possess a firearm and ammunition under federal and state law after confirmation through a background check;

(2) Attests to storing the firearms and ammunition in a manner such that the respondent does not have access to or control of the firearms and ammunition until the extreme risk protection order against the respondent is vacated or ends without extension; and

(3) Attests not to transfer the firearms or ammunition back to the respondent until the extreme risk protection order against the respondent is vacated or ends without extension.

39-17-1371.

(a) Within twenty-four (24) hours after issuance of an order pursuant to § 39-17-1367, the clerk of the court shall enter the extreme risk protection order or temporary ex parte extreme risk protection order into the uniform case reporting system.

(b) Within twenty-four (24) hours after issuance, the clerk of the court shall forward a copy of an order issued pursuant to § 39-17-1367 to the appropriate law enforcement agency specified in the order. Upon receipt of the copy of the order, the law enforcement agency shall enter the order into the national crime information center and similar state databases. The order must remain in each system for the period stated in the order, and the law enforcement agency may only remove an order from the systems which has ended or has been vacated. Entry of the order into the national crime information center and similar state databases constitutes notice to all law enforcement agencies of the existence of the order. The order is fully enforceable in each county in this state.

(c) The issuing court shall, within three (3) business days after issuance of an extreme risk protection order or temporary ex parte extreme risk protection order, forward all available identifying information concerning the respondent, along with the date of order issuance, to the department of safety. Upon receipt of the information, the department shall determine if the respondent has a handgun carry permit issued pursuant to § 39-17-1351 or § 39-17-1366. If the respondent does have a handgun carry permit, then the department must immediately suspend the permit.

(d) If an extreme risk protection order is vacated before its end date, the clerk of the court shall, on the day of the order to vacate, forward a copy of the order to the department of safety and the appropriate law enforcement agency specified in the order to vacate. Upon receipt of the order, the law enforcement agency shall promptly remove

the order from any computer-based system in which it was entered pursuant to subsection (b).

39-17-1372.

(a) A person who makes a false statement under oath in a hearing held pursuant to § 39-17-1367 in regard to a material matter commits perjury under § 39-16-702.

(b) A person who has in the person's custody or control a firearm or ammunition or who purchases, possesses, or receives a firearm or ammunition with knowledge that the person is prohibited from doing so by an order issued pursuant to § 39-17-1367 commits a Class E felony.

39-17-1373.

The surrender of a firearm or ammunition pursuant to § 39-17-1368 does not affect the ability of a law enforcement officer to remove a firearm or ammunition or handgun carry permit from a person or to conduct a search and seizure for firearms or ammunition pursuant to other lawful authority.

39-17-1374.

Except as provided in § 39-17-1372, there is no criminal or civil liability on a person or entity for acts or omissions related to obtaining an extreme risk protection order or temporary ex parte extreme risk protection order, including, but not limited to, providing notice to the petitioner, a family or household member of the respondent, and any known third party who may be at risk of violence or failure to provide such notice, or reporting, declining to report, investigating, declining to investigate, filing, or declining to file, a petition pursuant to § 39-17-1367.

39-17-1375.

(a)

(1) The administrative office of the courts shall develop and prepare instructions and informational brochures, standard petitions and extreme risk protection order forms, and a court staff handbook on the extreme risk protection order process. The standard petition and order forms must be used after January 1, 2026, for all petitions filed and orders issued pursuant to § 39-17-1367. The instructions, brochures, forms, and handbook must be prepared in consultation with interested persons, including clerks, judges, and law enforcement personnel. Materials must be based on best practices and must be available online to the public.

(2) The instructions must be designed to assist petitioners in completing the petition and must include a sample of a standard petition and order for protection forms.

(3) The instructions and standard petition must include a means for the petitioner to identify the firearms or ammunition the respondent may own, possess, receive, or have in the respondent's custody or control. The instructions must provide pictures of types of firearms and ammunition that the petitioner may choose from to identify the relevant firearms or ammunition, or must provide an equivalent means to allow petitioners to identify firearms or ammunition without requiring specific or technical knowledge regarding the firearms or ammunition.

(4) The informational brochure must describe the use of and the process for obtaining, extending, and vacating an extreme risk protection order under § 39-17-1367 and must provide relevant forms.

(5) The extreme risk protection order form must include, in a conspicuous location, notice of criminal penalties resulting from a violation of the order and the

following statement: "You have the sole responsibility to avoid or refrain from violating this order's provisions. Only the court can change the order and only upon written request."

(6) The court staff handbook must allow for the addition of a community resource list by the clerk of the court.

(b) A clerk of the court may create a community resource list of crisis intervention, mental health, substance abuse, interpreter, counseling, and other relevant resources serving the county in which the court is located. The court may make the community resource list available as part of or in addition to the informational brochures described in subsection (a).

(c) The administrative office of the courts shall distribute a master copy of the petition and order forms, instructions, and informational brochures to the clerks of court. Distribution of all documents must, at a minimum, be in an electronic format or formats accessible to all courts and clerks of court in the state.

(d) Within ninety (90) days after receipt of the master copy from the administrative office of the courts, the clerk of the court shall make available the standardized forms, instructions, and informational brochures required by this section.

(e) The administrative office of the courts shall update the instructions, brochures, standard petition and extreme risk protection order forms, and court staff handbook as necessary, including when changes in the law make an update necessary.

SECTION 2. Tennessee Code Annotated, Title 39, Chapter 17, Part 13, is amended by adding the following as a new section:

(a) It is an offense to store or keep a firearm in any place unless the firearm is secured in a locked container, unloaded, and separate from ammunition so as to render

the firearm inoperable by a person other than the owner or another lawfully authorized user.

(b) A violation of subsection (a) is a Class A misdemeanor.

(c) This section does not apply to a firearm that is carried by or under the control of the owner or another lawfully authorized user.

SECTION 3. Tennessee Code Annotated, Section 39-17-1316(c), is amended by redesignating the existing language as subdivision (c)(1) and adding the following subdivision (c)(2):

(2) Except with respect to transactions between persons licensed as dealers under 18 U.S.C. § 923, a gun dealer shall not deliver a firearm to a purchaser until fifteen (15) business days after compliance with subdivision (c)(1).

SECTION 4. This act takes effect July 1, 2025, the public welfare requiring it.